

TECHNICAL SUPPLEMENT · 001-INV-INT

JRS™ Investigator Field Guide

Assessing Evidentiary Traceability in Administrative Records: Equality and Human Rights Investigations (International Edition)

Document	001-INV-INT
Version	1.1
Effective	July 2026
Status	Active
Applies to	Equality bodies, national human rights institutions, and administrative investigations into discrimination in employment, housing, and access to goods and services; complaint intake and pre-finalization review.

PURPOSE

This supplement introduces the Justification Review Standard (JRS™) for investigators, case officers, and equality-body and human-rights-institution staff. It provides an operational method for evaluating whether administrative records contain sufficient, traceable support for their conclusions, particularly where automated drafting tools have contributed to the record. It supplements existing investigative procedures; it does not replace them.

Phillip Wikes | Former Lead Civil Rights Officer, Maryland Commission on Civil Rights

The Maryland Commission on Civil Rights is an equality-body-type agency enforcing both employment and housing anti-discrimination law, a dual mandate shared by most national equality bodies.

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DOCUMENT NOTICE

This document is issued as an open technical reference. It does not constitute legal advice and does not replace applicable procedural requirements. Applicable national legislation, jurisdiction, and organizational procedures govern. References to investigative contexts describe where the method may be applied and do not imply endorsement or affiliation.

01 Purpose and Scope

This supplement introduces the Justification Review Standard (JRS™) for investigators, case officers, and equality-body and human-rights-institution staff. It provides an operational method for evaluating whether administrative records contain sufficient, traceable support for their conclusions, particularly where automated drafting tools have contributed to the record. It supplements existing investigative procedures; it does not replace them.

SCOPE

Applies to discrimination investigations in employment, housing, and access to goods and services; to complaint intake and assessment; and to pre-finalization review of administrative records. Applicable national legislation and organizational procedures govern. Intended to supplement existing investigative procedures, not replace them.

Increasing use of AI-assisted drafting in administrative documentation has created review conditions not addressed in standard investigative guidance. These tools can produce coherent narratives that lack traceable factual grounding. JRS provides a structured method for identifying documentation-traceability gaps during review.

THE CONDITION THIS DETECTS: DECISION RECONSTRUCTION RISK

The failure this supplement is built to detect is **Decision Reconstruction Risk (DRR)**: the condition in which a record cannot explain, on its own terms, why a consequential decision was made. The decision may have been sound; the record still cannot demonstrate how it was reached. Each of the five conditions below tests one aspect of a record's freedom from DRR, and each Justification Gap identified in Section 4 is a documented instance of it. The tolerable level of DRR falls as the stakes of the decision rise.

02 Standard of Review: The Five Conditions

Each condition is evaluated independently. Failure of any single condition identifies a documentation-traceability gap, an instance of Decision Reconstruction Risk.

- I Record Self-Sufficiency.** A neutral reviewer can identify the basis for the administrative conclusion using only what the record contains, without verbal explanation or outside context. The record functions without the original author available to explain it.
- II Evidentiary Anchoring.** Each material conclusion is supported by specific, identifiable evidence: dated records, correspondence, employment or tenancy records, screening or eligibility criteria, documented interactions, or witness accounts. General impressions and unsupported characterizations do not satisfy this condition.
- III Chronological Integrity.** Relevant events, dates, and their sequence are identifiable from the record. Missing or unidentified dates are the most common single gap.
- IV Decision-Process Traceability.** The path from evidence to conclusion is visible within the record. Conclusions that depend on unstated assumptions or context absent from the file do not satisfy this condition. A coherent narrative is not equivalent to a traceable record.
- V Evidentiary Sufficiency.** The evidence in the record is sufficient to support the conclusion. Where automated drafting tools contributed, the source material is identifiable and was reviewed by a human before finalization. AI-assisted wording that introduces characterizations absent from source notes is a traceability deficiency.

03 AI Documentation Risk

Automated drafting tools introduce review conditions not present in manually drafted records. Reviewers should recognize the following patterns.

Unsupported Narrative Generation

Automated systems can produce plausible, professionally worded summaries not anchored to identifiable source material. The wording may appear complete while the evidentiary basis is absent.

Characterization Without Anchor

Terms such as “uncooperative,” “unprofessional,” “unsuitable applicant,” or “problem tenant” introduced by an automated tool require the same anchoring as manually drafted language. The origin of the language does not change the traceability requirement.

Conflict Obscuring

Automated summarization may resolve or omit conflicting accounts, partial recollections, or qualifications present in source notes. The final record may read as settled while the underlying material is contested or incomplete.

Cross-Record Wording Carry-Forward

Where tools reference prior records during drafting, unanchored characterizations from earlier entries may carry forward. Each repetition appears to corroborate the last, though no individual entry contains independent support.

04 Identifying the Justification Gap

When a record fails one or more conditions, document the deficiency as a Justification Gap, a documented instance of Decision Reconstruction Risk and a structured trigger for additional review or return to the originating reviewer. The framework below applies across employment, housing, and services matters.

RECORD INTERROGATION FRAMEWORK

Record Statement	Reviewer Question	Traceability Check
“The complainant demonstrated a pattern of unprofessional conduct.”	What specific conduct, on what dates, and is it documented?	Observable anchor required. Pattern claims require at least two dated, identified instances.
“The applicant was rejected for not meeting the selection criteria.”	What criteria, applied how, and were they applied consistently to comparators?	The criteria and the applicant's failing data point must be identifiable. Comparator treatment supports consistency.
“The accommodation request was found unreasonable.”	What was requested, what process occurred, and what documented basis supports the refusal?	A dated interactive-process record is required. A disproportionate-burden basis must be stated, not asserted.
“The tenancy application was declined on affordability grounds.”	What affordability standard applied, what figures were used, and were they applied consistently?	The standard and the applicant's figures must be identifiable from the record; comparator treatment must be traceable.
“The service was refused in line with policy.”	Which policy, applied to what facts, and how were comparable requests handled?	The policy and its application to the specific facts must be visible. Comparable-case treatment supports consistency.
“The record was refined for clarity using an automated tool.”	Is the original source material available? Were characterizations introduced that are absent from source notes?	Source verification and human confirmation required before finalization.

05 Administrative Integrity and Neutrality

JRS evaluates documentation sufficiency independently of the underlying administrative outcome. A record may satisfy all five conditions even when the underlying decision is later disputed on substantive grounds. Documentation quality and decision quality are separate questions.

For Investigators	A consistent, neutral framework for identifying documentation-traceability gaps. Reduces reliance on recollection to reconstruct the basis for determinations.
For Complaint Intake and Assessment	Supports pre-incorporation review of intake and assessment summaries before they enter the case file.
For Equality Bodies and Human Rights Institutions	A structured reconstruction check applicable across employment, housing, and services investigations under a single method.
For Compliance and Quality	Supports audit sampling and documentation-quality review across case types.

REVIEWER NOTE

Documentation quality is not the same as decision quality. A record can be thoroughly documented and still reflect a contestable decision. The review evaluates the file, not the outcome.

06 Implementation Guidance

JRS is intended for use within existing investigative and administrative-review workflows. No dedicated software, system replacement, or structural change is required. It can be introduced incrementally at the pre-finalization stage.

REVIEW WORKFLOW

Draft prepared → reviewer checks the five conditions → traceability gaps flagged → secondary review if triggered → human confirmation completed → record enters case file

Complaint Intake and Assessment Review

Apply the five-condition review at intake to complaints and assessment summaries. Records failing one or more conditions should be flagged before incorporation into the case file.

Investigation Record Review

Apply the Record Interrogation Framework to witness summaries, incident records, and narrative conclusions. Source materials must be identified, and comparator treatment traceable. Conflicting accounts must be acknowledged, not resolved by omission.

AI-Assisted Record Review

Apply the Evidentiary Sufficiency condition before any AI-assisted content enters a record. Confirm source materials were reviewed and no unverified characterizations were introduced before finalization.

Audit Sampling

Apply the failure-mode catalog periodically to sample records for traceability deficiencies. Results identify record types and workflow stages where documentation quality is consistently insufficient.

07 Reviewer Quick Reference

BEFORE FINALIZATION, ASK:

- 1

Can this record stand on its own?
Would a later reviewer understand the basis without contacting the original author?
- 2

What specific evidence anchors each conclusion?
Dates, records, criteria, documented interactions, or referenced material. Verify attachments are on file.
- 3

Is the path from evidence to conclusion visible in the record?
Not in the author's memory. In the document itself.
- 4

Are dates, timelines, and applicable criteria identifiable?
Missing dates are the most common single gap. Pattern claims require specific dated instances.
- 5

Were characterizations verified against source material before finalization?
A human reviewer must confirm. Source records must be identified before finalization.

SUBMISSION READINESS

STOP	Return to drafter. Evaluative language without anchors, or timeline / criteria basis absent. Do not finalize.
REVIEW	Clarification required. Conclusion may be accurate but the basis is not visible in the record. Additional anchoring or secondary review needed.
READY	Self-contained. Evidence identifiable, reasoning traceable, basis holds without explanation from the author.

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TEST YOUR RECORDS AGAINST THE SEVEN-POINT STANDARD

This guide describes what a defensible record contains. To test a record you already have, work through the Seven-Point Record Defensibility Check at jrsstandard.com/check. It takes one closed matter and about five minutes, asks for no registration and no upload, and your answers stay in your browser.

The Check is a prompt for human review of a single record. It is not a determination about that record, not certification, and not a credential.